SUBCONTRACT AGREEMENT: GLAZING AND CURTAIN WALL WORK

This Subcontract Agreement (the "Subcontract") is made as of February 2, 2026, between **Calder & Webb Builders**, a California corporation holding California Contractors State License Board License No. 1029417 (Class B), with offices at 2250 West Shaw Avenue, Suite 310, Fresno, California 93711 ("Contractor"), and **Brightline Glazing Co.**, a California corporation holding California Contractors State License Board License No. 1067352 (Class C-17), with offices at 4719 East Jensen Avenue, Fresno, California 93725 ("Subcontractor").

Contractor has entered into a prime contract (the "Prime Contract") with **Fresno Community Health Partners** ("Owner") for construction of the **Kings Canyon Medical Office Building**, located at 5830 East Kings Canyon Road, Fresno, California 93727 (the "Project"). Contractor wishes to engage Subcontractor to perform a portion of the work required by the Prime Contract. Subcontractor is willing to perform that work on the terms below.

In consideration of the mutual promises in this Subcontract, Contractor and Subcontractor agree as follows.

ARTICLE 1 — DEFINITIONS

1.1 "Subcontract Work" means all labor, supervision, materials, equipment, engineering, testing, and services required to complete the work described in Article 3, including all work reasonably inferable from the Subcontract Documents.

1.2 "Subcontract Documents" means this Subcontract, the Exhibit — Schedule of Values, the Prime Contract to the extent it applies to the Subcontract Work, and the drawings, specifications, addenda, and modifications listed in Article 2.

1.3 "Final Completion of the Subcontract Work" means the date on which Contractor confirms in writing that Subcontractor has completed all Subcontract Work, all punch list items, all required testing, and all closeout submittals, including warranties, operation and maintenance data, and as-built drawings.

1.4 "Change Order" means a written document signed by Contractor and Subcontractor that changes the Subcontract Work, the Subcontract Sum, or the schedule.

1.5 "Backcharge" means a cost incurred by Contractor that this Subcontract makes the responsibility of Subcontractor, including the cost of correcting Subcontractor's defective or nonconforming work, cleanup Subcontractor failed to perform, and damage Subcontractor caused to the work of others.

ARTICLE 2 — SUBCONTRACT DOCUMENTS

2.1 The Subcontract Documents include the Project drawings and specifications prepared by Arroyo Vance Architects, dated October 17, 2025, as revised by Addenda One through Four, together with all bulletins issued before the date of this Subcontract.

2.2 Subcontractor acknowledges that it has received and reviewed the Prime Contract, except for pricing information. Subcontractor assumes toward Contractor all obligations Contractor assumes toward Owner under the Prime Contract with respect to the Subcontract Work. Where the Prime Contract and this Subcontract conflict, the provision that places the greater obligation on Subcontractor governs, except that the payment, retention, and waiver terms of this Subcontract control as between Contractor and Subcontractor.

2.3 Subcontractor shall promptly notify Contractor in writing of any error, omission, or inconsistency it discovers in the Subcontract Documents. Subcontractor shall not proceed with affected work until Contractor provides direction.

ARTICLE 3 — SCOPE OF SUBCONTRACT WORK

3.1 Subcontractor shall furnish and install all glazing and glazed systems for the Project as shown and specified, including the work covered by the following specification sections:

- Section 08 41 13, Aluminum-Framed Entrances and Storefronts; - Section 08 44 13, Glazed Aluminum Curtain Walls; - Section 08 71 13, Automatic Door Operators, limited to coordination and installation of operators at glazed entrances; - Section 08 80 00, Glazing; and - Section 08 83 00, Mirrors.

3.2 The Subcontract Work includes, without limitation:

(a) delegated design engineering of the unitized curtain wall system, stamped by an engineer licensed in California, including anchor design and calculations;

(b) shop drawings, product data, samples, and a full-size visual mockup of a typical curtain wall bay;

(c) all aluminum framing, insulating glass units, spandrel panels, anchors, embeds furnished for installation by others, and attachment hardware;

(d) all perimeter sealants, transition membranes at glazing system interfaces, and flashings shown on the glazing details;

(e) exterior and interior aluminum entrances, including doors, frames, and finish hardware specified within Section 08 41 13;

(f) interior glazed partitions, borrowed lites, sidelites, and mirrors at restrooms and clinical areas;

(g) field water testing of installed curtain wall and storefront in accordance with the specifications, with retesting at Subcontractor's expense if any test fails; and

(h) protection of installed glazing until Contractor accepts the Subcontract Work, together with final glass cleaning.

3.3 The Subcontract Work excludes structural steel, concrete embeds not part of the curtain wall anchorage design, building wiring to automatic door operators, and window coverings.

3.4 Subcontractor shall furnish all hoisting, scaffolding, and swing stages required for the Subcontract Work, except that Contractor will make the Project tower crane available on a scheduled basis at no charge.

ARTICLE 4 — SUBCONTRACT SUM

4.1 Contractor shall pay Subcontractor for full performance of the Subcontract Work the sum of **Four Hundred Eighty-Five Thousand Dollars ($485,000.00)** (the "Subcontract Sum"), subject to additions and deductions by Change Order.

4.2 The Subcontract Sum includes all applicable sales and use taxes, permits and fees for the Subcontract Work, delegated design, freight, bonds required by this Subcontract, insurance, and profit and overhead.

4.3 The Subcontract Sum is allocated in the Exhibit — Schedule of Values. Contractor may use the Schedule of Values only to evaluate applications for payment. The Schedule of Values does not limit Subcontractor's obligation to perform all Subcontract Work for the Subcontract Sum.

ARTICLE 5 — TIME AND SCHEDULE

5.1 Subcontractor shall begin the Subcontract Work upon written notice to proceed from Contractor and shall perform it in accordance with Contractor's Project schedule, as updated from time to time. Time is of the essence.

5.2 Subcontractor shall submit complete curtain wall shop drawings and delegated design calculations within forty-five days after the notice to proceed. Subcontractor shall begin field installation of curtain wall anchors within five days after Contractor's notice that the structural frame at the relevant elevation is ready.

5.3 Subcontractor shall provide sufficient labor, materials, and supervision to maintain the schedule. If Subcontractor falls behind, Contractor may direct Subcontractor in writing to add workers or work additional shifts at Subcontractor's expense until the schedule is recovered.

5.4 If Subcontractor is delayed by causes beyond its control and not caused by its own fault, Subcontractor may request an extension of time. Subcontractor must give written notice of the delay within seven days after the delay begins. Failure to give timely notice waives the request. A time extension is Subcontractor's sole remedy for delay, except to the extent Owner pays Contractor for delay costs attributable to the Subcontract Work.

ARTICLE 6 — PROGRESS PAYMENTS

6.1 Subcontractor shall submit an application for payment to Contractor on or before the twentieth day of each month. Each application shall cover Subcontract Work performed through the end of that month, estimated to the end of the month where necessary. Each application shall be itemized against the Schedule of Values and accompanied by the lien waivers required by Article 8, certified payroll records when required, and any other supporting documentation Contractor reasonably requests.

6.2 Contractor will include Subcontractor's approved application in Contractor's monthly payment application to Owner.

6.3 **Payment timing.** Contractor and Subcontractor expressly agree in writing that Contractor's payment to Subcontractor will be made on a pay-when-paid basis. Contractor shall pay Subcontractor each progress payment within seven calendar days after Contractor receives payment from Owner for the Subcontract Work included in that payment, less retention under Article 7 and any amounts withheld under Article 9. The parties intend this provision to fix the timing of payment, consistent with California Business and Professions Code Section 7108.5. They do not intend it to make Owner's payment a condition precedent to Contractor's obligation to pay for Subcontract Work properly performed.

6.4 Contractor will not pay for materials or equipment stored on or off the Project site. Contractor will pay only for materials and equipment that have been incorporated into the Project in accordance with the Subcontract Documents.

6.5 Payment by Contractor is not acceptance of defective or nonconforming work.

6.6 Final payment, including retention, is due as provided in Article 7. Before final payment, Subcontractor must submit all closeout items required by the Subcontract Documents and the final waivers required by Article 8.

ARTICLE 7 — RETENTION

7.1 Contractor shall withhold retention of five percent from each progress payment to Subcontractor.

7.2 Contractor shall release all retention withheld from Subcontractor within ten days after both of the following have occurred: Final Completion of the Subcontract Work, and Contractor's receipt of retention from Owner.

7.3 Contractor's release of retention is subject to Subcontractor's delivery of a conditional waiver and release on final payment under Article 8. It is also subject to any amounts Contractor is entitled to withhold under Article 9.

7.4 The parties intend this Article to comply with California Civil Code Sections 8812 and 8814. It shall be interpreted accordingly.

ARTICLE 8 — LIEN WAIVERS AND RELEASES

8.1 Every lien waiver and release Subcontractor provides under this Subcontract must be on the applicable statutory form prescribed by California Civil Code Sections 8132, 8134, 8136, and 8138. Contractor will not accept non-statutory forms or forms with altered language.

8.2 **Conditional waivers before progress payment.** Subcontractor must deliver a Conditional Waiver and Release on Progress Payment (Civil Code Section 8132), covering the amount of the current application, with each application for payment and before Contractor issues any progress payment.

8.3 **Unconditional waivers after payment.** After Subcontractor receives each progress payment, Subcontractor must deliver an Unconditional Waiver and Release on Progress Payment (Civil Code Section 8134) for the amount received. Contractor may withhold the next progress payment until the unconditional waiver for the prior payment has been delivered.

8.4 **Final waivers.** Subcontractor must deliver a Conditional Waiver and Release on Final Payment (Civil Code Section 8136) before release of retention and final payment. Subcontractor must deliver an Unconditional Waiver and Release on Final Payment (Civil Code Section 8138) after receiving final payment.

8.5 **Lower-tier waivers.** Subcontractor must obtain and deliver to Contractor, with each application for payment, conditional and unconditional statutory waivers from each of its sub-subcontractors and material suppliers. These include the curtain wall fabricator, the insulating glass supplier, and the aluminum extruder, if contracted directly. The lower-tier waivers must follow the same sequence and use the same statutory forms required of Subcontractor in this Article.

8.6 If any stop payment notice, mechanic's lien, or payment bond claim is filed by anyone claiming through Subcontractor, Subcontractor shall cause it to be released or bonded around within ten days after Contractor's written demand. If Subcontractor fails to do so, Contractor may obtain a release bond and charge the cost, including reasonable attorneys' fees, to Subcontractor.

ARTICLE 9 — WITHHOLDING AND SETOFF

9.1 **Defective work.** Contractor may withhold from any payment an amount reasonably sufficient to correct defective or nonconforming Subcontract Work that Subcontractor has not corrected after notice. Contractor shall release the withheld amount once the work has been corrected and accepted.

9.2 **Backcharges.** Contractor may set off against any amount due to Subcontractor under this Subcontract the amount of any Backcharge. Before setting off a Backcharge, other than in an emergency, Contractor shall give Subcontractor written notice describing the Backcharge and shall allow Subcontractor three business days to begin to cure.

9.3 Contractor may also withhold amounts reasonably necessary to cover:

(a) unpaid claims of Subcontractor's sub-subcontractors, suppliers, or workers;

(b) stop payment notices or liens arising from the Subcontract Work;

(c) damage Subcontractor caused to Contractor, Owner, or other trades; and

(d) Subcontractor's failure to deliver the waivers required by Article 8.

9.4 Contractor shall give Subcontractor a written statement of each amount withheld and the reason for it.

ARTICLE 10 — CHANGES IN THE WORK

10.1 Contractor may order changes in the Subcontract Work by written directive or Change Order without invalidating this Subcontract. Subcontractor shall proceed promptly with changed work once it receives a written directive, even if the parties have not yet agreed on price or time.

10.2 Subcontractor shall submit a written, itemized proposal for any change within seven days after Contractor's request. The proposal shall break out labor hours, material quantities, equipment, and markup. Markup on Subcontractor's own work shall not exceed ten percent for overhead and profit combined. Markup on sub-subcontracted work shall not exceed five percent.

10.3 Subcontractor shall not be paid for any change performed without a written directive or Change Order.

10.4 If Subcontractor believes any Contractor instruction constitutes a change, Subcontractor must give written notice within five days after receiving the instruction and before performing the affected work. Otherwise, the claim is waived.

10.5 To the extent a change or claim depends on Owner's action, Subcontractor's recovery is limited to the amount Contractor actually recovers from Owner on Subcontractor's behalf, less Contractor's reasonable costs of pursuing it. Contractor will present Subcontractor's properly documented claims to Owner in good faith.

ARTICLE 11 — INSURANCE AND INDEMNITY

11.1 Subcontractor shall maintain, at its own expense, the following insurance with carriers rated A- VII or better by A.M. Best:

(a) commercial general liability insurance with limits of not less than $2,000,000 per occurrence and $4,000,000 aggregate, including completed operations coverage maintained for not less than three years after Final Completion of the Subcontract Work;

(b) automobile liability insurance with a combined single limit of not less than $1,000,000;

(c) workers' compensation insurance as required by California law, and employer's liability insurance with limits of not less than $1,000,000; and

(d) umbrella or excess liability insurance with limits of not less than $5,000,000.

11.2 Contractor, Owner, and Arroyo Vance Architects shall be named as additional insureds on Subcontractor's general liability, automobile, and umbrella policies. Coverage shall be primary and noncontributory. Subcontractor shall deliver certificates and endorsements before mobilizing.

11.3 To the fullest extent permitted by law, and subject to California Civil Code Section 2782.05, Subcontractor shall defend, indemnify, and hold harmless Contractor and Owner from claims, damages, losses, and expenses arising from the Subcontract Work. This obligation applies to the extent those claims, damages, losses, and expenses are caused by the negligence, recklessness, or willful misconduct of Subcontractor, its sub-subcontractors, suppliers, or anyone for whose acts they are responsible.

11.4 Subcontractor shall furnish payment and performance bonds, each in the full amount of the Subcontract Sum, issued by a surety admitted in California and acceptable to Contractor.

ARTICLE 12 — WARRANTY

12.1 Subcontractor warrants that all Subcontract Work will be of good quality and free from defects, and that it will conform to the Subcontract Documents.

12.2 Subcontractor shall correct any defective Subcontract Work discovered within one year after the date of substantial completion of the Project, at no cost to Contractor or Owner. If any defective work is corrected, a new one-year correction period begins for that work.

12.3 Subcontractor shall also deliver the following extended warranties, each beginning on the date of substantial completion of the Project:

(a) a two-year installer's warranty against water and air infiltration through the curtain wall and storefront systems;

(b) a ten-year manufacturer's warranty against seal failure of insulating glass units; and

(c) a twenty-year manufacturer's warranty for the fluoropolymer finish on aluminum framing.

12.4 If Subcontractor does not begin corrective work within five days after written notice, or within forty-eight hours where water intrusion threatens patient care areas, Contractor may perform the correction. Contractor may then recover the cost as a Backcharge.

ARTICLE 13 — SAFETY AND SITE CONDITIONS

13.1 Subcontractor shall comply with Cal/OSHA regulations, Contractor's site safety program, and the Owner's infection-control requirements for work adjacent to any occupied healthcare space.

13.2 Subcontractor shall designate a competent person on site at all times when its forces are working. Subcontractor shall submit a site-specific fall protection plan and a rigging plan for curtain wall unit installation before beginning that work.

13.3 Subcontractor shall attend Contractor's weekly coordination meetings. Subcontractor shall hold and document a weekly toolbox safety meeting with its crew.

13.4 Subcontractor shall keep its work areas clean and remove its debris daily. If Subcontractor fails to do so after twenty-four hours' notice, Contractor may perform the cleanup and Backcharge the cost.

ARTICLE 14 — DEFAULT AND TERMINATION

14.1 **Default.** Subcontractor is in default if it:

(a) fails to supply enough skilled workers or proper materials;

(b) fails to maintain the schedule;

(c) fails to pay its sub-subcontractors, suppliers, or workers when due;

(d) disregards applicable laws or Contractor's instructions; or

(e) otherwise materially breaches this Subcontract.

14.2 If Subcontractor defaults and fails to begin curing the default within three business days after written notice, and to cure it diligently afterward, Contractor may take one or more of the following steps:

(a) supplement Subcontractor's forces;

(b) terminate Subcontractor's right to perform all or part of the Subcontract Work; or

(c) take possession of Subcontractor's materials on site and complete the work by any reasonable means.

Subcontractor is liable for Contractor's costs of completion that exceed the unpaid balance of the Subcontract Sum.

14.3 **Termination for convenience.** Contractor may terminate this Subcontract for convenience on seven days' written notice. In that case, Subcontractor's sole recovery is payment for Subcontract Work properly performed through the termination date, plus reasonable demobilization costs and reasonable overhead and profit on completed work. Subcontractor may not recover anticipated profit on unperformed work.

14.4 **Termination of the Prime Contract.** If Owner terminates the Prime Contract, Contractor may terminate this Subcontract on the same terms. Subcontractor's recovery is limited to its proportionate share of what Contractor recovers from Owner.

ARTICLE 15 — DISPUTE RESOLUTION

15.1 The parties shall first try to resolve any dispute through good-faith negotiation between senior representatives. That negotiation shall be completed within fourteen days after either party's written request.

15.2 Disputes involving Owner's acts, or the Prime Contract, shall be resolved under the dispute procedures of the Prime Contract. Subcontractor agrees to be bound by the result to the same extent Contractor is bound.

15.3 Any other dispute not resolved by negotiation shall be submitted to non-binding mediation in Fresno County. If mediation does not resolve the dispute within sixty days after the mediation demand, either party may file suit in the Superior Court of California, County of Fresno.

15.4 Subcontractor shall continue performing the Subcontract Work while any dispute is pending. Contractor shall continue making undisputed payments.

ARTICLE 16 — GOVERNING LAW AND GENERAL PROVISIONS

16.1 **Governing law.** This Subcontract is governed by the laws of the State of California, without regard to its conflict-of-laws rules.

16.2 **Assignment.** Subcontractor shall not assign this Subcontract, or subcontract any portion of the Subcontract Work, without Contractor's prior written consent.

16.3 **Notices.** Notices must be in writing and delivered by hand, by nationally recognized overnight courier, or by email with confirmation of receipt, to the addresses stated in the preamble or any updated address a party designates in writing.

16.4 **Independent contractor.** Subcontractor is an independent contractor and is solely responsible for its employees' wages, benefits, and taxes. Where applicable, Subcontractor shall pay prevailing wages and shall comply with California Labor Code Sections 1720 through 1861.

16.5 **Entire agreement.** This Subcontract, including the Subcontract Documents, is the entire agreement between the parties regarding the Subcontract Work. It may be amended only by a writing signed by both parties.

16.6 **Severability and waiver.** If any provision is held unenforceable, the remaining provisions remain in effect. A party's failure to enforce any provision is not a waiver of that provision.

16.7 **Attorneys' fees.** In any action to enforce this Subcontract, the prevailing party may recover its reasonable attorneys' fees and costs.

IN WITNESS WHEREOF, Contractor and Subcontractor have executed this Subcontract as of the date first written above, each by its duly authorized representative.

CALDER & WEBB BUILDERS By: _____ Name: Theodore J. Calder Title: President Date: _____

BRIGHTLINE GLAZING CO. By: _____ Name: Marisol Okafor-Reyes Title: Chief Executive Officer Date: _____

EXHIBIT — SCHEDULE OF VALUES

Item	Description	Scheduled Value
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A	Delegated design engineering, shop drawings, submittals, and mockup	$18,000.00
B	Mobilization and hoisting setup	$9,000.00
C	Unitized curtain wall: materials and fabrication (Section 08 44 13)	$162,000.00
D	Unitized curtain wall: field installation and anchorage	$98,000.00
E	Aluminum storefront framing and glazing (Section 08 41 13)	$64,000.00
F	Exterior entrance doors, frames, and finish hardware	$38,000.00

G	Interior glazed partitions, borrowed lites, and mirrors (Sections 08 80 00 and 08 83 00)	$41,000.00
H	Perimeter sealants, transition membranes, and flashings	$22,000.00
I	Field water testing and retesting	$11,000.00
J	Payment and performance bonds and insurance	$14,000.00
K	Punch list, final cleaning, warranties, and closeout documents	$8,000.00
	****Subcontract Sum****	****$485,000.00****